

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leanne Fornelli	Team: Squad #08	CCRB Case #: 201412788	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/16/2014 10:05 PM	Location of Incident: Springfield Boulevard at Hempstead Avenue	18 Mo. SOL 6/16/2016	Precinct: 105		
Date/Time CV Reported Tue, 12/30/2014 4:44 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 12/30/2014 4:44 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anton Bartoldus	11407	926549	105 PCT
2. POM Brian Moore	00469	949359	105 PCT
3. SGT John Collins	01935	940017	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anton Bartoldus	Abuse: PO Anton Bartoldus stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . SGT John Collins	Abuse: Sgt. John Collins stopped § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Brian Moore	Abuse: PO Brian Moore stopped § 87(2)(b) and § 87(2)(b)	C . Miscellaneous
D . POM Anton Bartoldus	Abuse: PO Anton Bartoldus frisked § 87(2)(b)	D . Unsubstantiated
E . POM Anton Bartoldus	Abuse: PO Anton Bartoldus searched § 87(2)(b)	E . Unsubstantiated
F . POM Brian Moore	Abuse: PO Brian Moore frisked § 87(2)(b)	F . Miscellaneous
G . POM Brian Moore	Abuse: PO Brian Moore searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Miscellaneous
H . POM Anton Bartoldus	Abuse: PO Anton Bartoldus searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Substantiated
I . POM Anton Bartoldus	Abuse: PO Anton Bartoldus threatened § 87(2)(b)	I . Unsubstantiated

Case Summary

On December 16, 2014, at approximately 10:05 p.m. § 87(2)(g) on Springfield Boulevard at Hempstead Avenue in Queens (encl. 5a), PO Anton Bartoldus, PO Brian Moore and Sgt. John Collins of the 105th Precinct stopped § 87(2)(b) and § 87(2)(b) (**Allegations A through C**), who were in § 87(2)(b)'s car. It was alleged that PO Bartoldus frisked and searched § 87(2)(b) (**Allegations D and E**), PO Moore frisked § 87(2)(b) (**Allegation F**) and searched the car (**Allegation G**), and PO Bartoldus threatened § 87(2)(b) (**Allegation I**). PO Bartoldus acknowledged searching the car (**Allegation H**). § 87(2)(b) and § 87(2)(b) were released without summons or arrest.

On May 4, 2015, PO Moore passed away from the injuries he incurred from being shot while on-duty (encl. 1a-1d). § 87(2)(g)

Mediation, Notice of Claim and Criminal Histories

- On January 12, 2015, § 87(2)(b) was offered mediation at the conclusion of his verified interview, but opted for an investigation.
- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of May 15, 2015, which is two months after the 90-day filing deadline, with regard to the incident (encl. 14a).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and involving § 87(2)(b) (encl. 4a-4b).
- PO Bartoldus has been a member of the service for 14 years and has had 13 other CCRB allegations pled against him in 6 cases (encl. 3a-3b) and none of them were substantiated. In 200616210, an allegation of a vehicle search was closed as complaint withdrawn.
- PO Moore was a member of the service for 4 years and had 8 other CCRB allegations pled against him in 6 cases (encl. 3c) and none of them were substantiated. Two allegations of a vehicle stop were closed as unsubstantiated and complainant uncooperative. Two allegations of a vehicle search were closed as complainant uncooperative.
- Sgt. Collins has been a member of the service for 9 years and has 1 other allegation pled against him in 1 case (encl. 3d) that was not substantiated § 87(2)(g)

Additional Witnesses

§ 87(2)(b) would not provide contact information for her family, the four individuals, three of them children, in the backseat of § 87(2)(b)'s car. Without this information, these witnesses could not be contacted.

Investigative Findings and Recommendations

Explanations of Subject Officer Identities

PO Bartoldus, PO Moore and Sgt. Collins acknowledged their participation in the incident.

Allegation A: Abuse of Authority: Sgt. John Collins stopped § 87(2)(b) and § 87(2)(b)

Allegation B: Abuse of Authority: PO Anton Bartoldus stopped § 87(2)(b) and

§ 87(2)(b)

§ 87(2)(b) (encl. 8a-8j) said that at the time of the incident, he was driving § 87(2)(b) the front passenger, and the four individuals in the backseat from a church at § 87(2)(b) to § 87(2)(b)'s residence. Five blocks away from the church, in the left turn lane on Springfield Boulevard at Hempstead Avenue (encl. 5a-5b), his 2012 Hyundai Elantra died. § 87(2)(b) manually rolled down his window so the car windows would not fog up and put on his hazard lights. He told the individuals in the backseat to cross the street and go inside the deli at the corner until a tow truck arrived or the car restarted. At the time, it was dark outside, raining heavily and cars were passing at a high rate of speed. When the traffic light turned red, the individuals ran from the car to the deli and some entered while others stood under the awning.

§ 87(2)(b) planned to use her cellphone to call AAA. In less than one minute, an unmarked black Chevrolet Impala turned left onto Springfield Boulevard from Hempstead Avenue, where it had been travelling eastward, and pulled up nose-to-nose in front of § 87(2)(b)'s car. Three plainclothes officers identified as PO Bartoldus, PO Moore and Sgt. Collins approached quickly and aggressively while yelling. During this time, § 87(2)(b) and § 87(2)(b) did not reach for anything or make any sudden movements. The officers yelled, "Don't move. Put your hands up. Put your hands up." § 87(2)(b) immediately raised his hands from either his lap or the steering wheel (he could not recall precisely where they were) to above his head. In his initial email complaint (encl. 6a-6f), § 87(2)(b) did not say that the officers instructed him to put his hands up, but did say that he did this. PO Bartoldus stood at the driver's window and PO Moore stood at the front passenger's window. § 87(2)(b) had no awareness of Sgt. Collins at this time and no officer spoke to the individuals at the bodega. § 87(2)(b)

§ 87(2)(b) he said over ten times, "I'm on the job. I'm a peace officer." § 87(2)(b) PO Bartoldus asked him if he was armed and he said that he was not. § 87(2)(b) stated that he had his shield in his pocket and asked PO Bartoldus if he wanted him to retrieve it. PO Bartoldus said no, and told him not to move. PO Bartoldus never asked him if he was part of the NYPD. PO Bartoldus instructed him to step out of and put his hands on the car, with which he immediately complied. Until this time, § 87(2)(b) kept his hands raised. PO Bartoldus would later ask about any guns or drugs in the car.

§ 87(2)(b) (encl. 9a-9g), § 87(2)(b) § 87(2)(g)

§ 87(2)(b) The patrol car had been travelling in the opposite direction of § 87(2)(b)'s car, determined to be northbound, on Springfield Avenue and it pulled up next to and on the driver's side of § 87(2)(b)'s car. As the officers approached, § 87(2)(b) had her hands in her lap and § 87(2)(b) had his on the steering wheel. Neither made any sudden movements. The officers approached with their flashlights and asked what was going on and if there were drugs or guns in the car. No officer told § 87(2)(b) to raise his hands. § 87(2)(b) said there were no drugs or guns in the car and repeatedly said that he was on the job, as they were trained as peace officers to say. PO Moore, who stood on the passenger's side of the car, asked § 87(2)(b) if she was certain that there were no guns or drugs in the car and § 87(2)(b) answered that she was certain there were not. She thought that § 87(2)(b) went to retrieve his wallet, but was uncertain. She knew, however, that PO Bartoldus had § 87(2)(b)'s peace officer identification before § 87(2)(b) exited the car in compliance with the officers' request for it.

PO Bartoldus (encl. 10a-10i), the driver of the patrol car, said as the patrol car headed eastward on Hempstead Avenue, he observed § 87(2)(b)'s car in the left turn lane of Springfield Boulevard at Hempstead Avenue. The two rear passenger doors flew open and a few people ran at full speed, seemingly in fear, from the car and into the corner bodega. Either PO Bartoldus or Sgt. Collins, the front passenger, noticed this first. PO Bartoldus did not attribute the individuals running as an effort to avoid traffic or inclement weather, but thought something was awry. He mentioned a rash of livery cab robberies that had been occurring in the area at the time of the incident. He could not recall if the car's hazard lights were triggered. He travelled northbound on Springfield Boulevard, made a U-turn and pulled up directly behind § 87(2)(b)'s car, which took less than a minute. The traffic light turned green and § 87(2)(b)'s car did not move, which raised PO Bartoldus's level of suspicion even further. All three officers exited simultaneously. Nothing about the car made PO Bartoldus feel unsafe or raised his level of suspicion. He went to the driver's door and identified himself as an officer while Sgt. Collins and PO Moore went to the passenger's side. § 87(2)(b) and § 87(2)(b) made no sudden movements as PO Bartoldus approached. § 87(2)(b) who was calm, said, "I'm on the job," which he would say three times and from which PO Bartoldus assumed he meant that he was a police officer. PO Bartoldus asked for what department § 87(2)(b) worked and he said, § 87(2)(b). PO Bartoldus had never heard of this department, and thus doubted that § 87(2)(b) was a police officer and thought he was being misled. He could not recall if he asked § 87(2)(b) if he was armed or if § 87(2)(b) volunteered any information about this. § 87(2)(b) then reached downward with his left hand and his right hand was at his side. PO Bartoldus could not see where § 87(2)(b) was reaching and told him to show his hands, with which he immediately complied. § 87(2)(b) reaching, the individuals running from the car, the car staying stationary after the light turned green and § 87(2)(b) mentioning a department with which he was unfamiliar caused PO Bartoldus to fear that § 87(2)(b) was not an officer and was in possession of a weapon. The occupants of the car were not asked about drugs. PO Bartoldus opened the driver's door and told § 87(2)(b) to exit the car, which he did. PO Moore had § 87(2)(b) step out of the car. PO Bartoldus completed a stop and frisk report for § 87(2)(b) which stated that the stop was conducted for the inconsistent answer of "I'm on the job," as the reasonable suspicion of criminal activity of criminal possession of a weapon (encl. 10c-10d).

Sgt. Collins (encl. 12a-12g), the front passenger of the patrol car, said he was the first officer to notice § 87(2)(b)'s vehicle and he could not recall if the vehicle's hazard lights were triggered. As the patrol car travelled westbound on Hempstead Avenue, all four doors of § 87(2)(b)'s vehicle suddenly opened. He had no awareness of the traffic pattern heading northbound on Springfield Boulevard. About two or three people exited the vehicle and ran toward the northeast corner of the intersection, crossing Springfield Boulevard, before disappearing into a store. This was suspicious and odd to Sgt. Collins, who thought a violent crime had occurred or the vehicle was stolen, given that the area was known for robberies. No officer pursued the individuals who had run into the store because they began interacting with § 87(2)(b). Sgt. Collins told PO Bartoldus to drive toward § 87(2)(b)'s car, and PO Bartoldus made a U-turn on Springfield Boulevard and stopped directly next to § 87(2)(b)'s car, the doors of which were still open. The officers approached simultaneously, and Sgt. Collins approached the passenger's side with PO Moore while PO Bartoldus went to the driver's side. He could not recall if any officer issued an instruction for the occupants to show their hands. § 87(2)(b) twice shouted, "I'm on the job. I'm on the job." Sgt. Collins interpreted this to mean that he was a police officer. Sgt. Collins thought § 87(2)(b) was saying this to divert attention, as this is a loose and informal way of expressing the status of a police officer. Without being asked any question, § 87(2)(b) then said, § 87(2)(b) § 87(2)(b) did

not say while he was inside the car that he was a peace officer and Sgt. Collins could not recall if any officer asked him if he was a police officer. As Sgt. Collins never heard of this command, his suspicions were raised that someone was in danger and that § 87(2)(b) had a firearm. No officer asked § 87(2)(b) if he was armed. Sgt. Collins did not do this because it would have turned the situation into a dangerous one. While § 87(2)(b) spoke, he moved around inside the vehicle. Sgt. Collins could not describe his movements exactly, except that he was not still and his upper body was moving. This with the other circumstances caused Sgt. Collins to think it was possible that § 87(2)(b) was reaching for something and his level of suspicion was further raised. § 87(2)(b) and § 87(2)(b) stepped out of the car at officers' instructions.

PO Moore (encl. 11a-11g), the backseat passenger of the patrol car, said that as the patrol car headed eastbound on Hempstead Avenue and they approached the intersection at Springfield Boulevard, they stopped at the traffic light. PO Moore observed § 87(2)(b)'s car in the left turn lane facing southbound on Springfield Boulevard with no hazard lights and only the left turn signal triggered. Although the traffic light changed, § 87(2)(b)'s car did not move and other cars travelled around it. The occupants of the backseat then exited and sprinted straight into a bodega on the northeast corner of the intersection, crossing a busy traffic lane to do so. PO Moore had no indication of why this was happening. He could not recall what the weather was like, but even if the individuals were running to avoid the rain, he did not understand why the car did not simply pull over. The individuals' actions along with the robbery-prone location and the time of night raised PO Moore's suspicions. The patrol car's lights and sirens were activated and it turned left so that it was in front of and at a 45-degree angle to § 87(2)(b)'s car, which had no hazard lights triggered. PO Bartoldus approached the driver's side, PO Moore approached the passenger said and PO Moore could not recall where Sgt. Collins approached. As PO Moore approached, he observed § 87(2)(b) make a furtive movement toward § 87(2)(b)'s legs such that he passed or dropped something near the floor of the vehicle. He did not see any object in § 87(2)(b)'s hands and could not recall if § 87(2)(b) had anything in hers. PO Bartoldus spoke to § 87(2)(b) but PO Moore could not make out what was said from the other side of the car. He did not know if § 87(2)(b) and § 87(2)(b) were asked about drugs, but he did not ask this and did not hear the other officers ask. He did not ask why the car was not moving and did not hear another officer ask this. PO Moore did not hear everything § 87(2)(b) told PO Bartoldus, but did hear him say, "I'm on the job," which PO Moore interpreted to mean that he was an active police officer. While he said this, he moved his hands around and reached around the car by putting them under the side of the seat. PO Moore did not know for what he was reaching. During this time, PO Moore gave no instruction regarding his hands and § 87(2)(b) never raised them. PO Moore asked § 87(2)(b) and § 87(2)(b) if there were guns in the car and both said there were not. PO Moore still suspected § 87(2)(b) of having a gun because he said, "I'm on the job." PO Bartoldus asked § 87(2)(b) to step out of the car and PO Moore politely asked § 87(2)(b) to do the same. The intention was to separate them and determine their relation, discover any criminality and discover what was happening.

A search of Weather Underground for weather history revealed that it was raining lightly on the date and time of the incident (encl. 13a-13c).

In the performance of public service functions, not related criminal law enforcement, officers should be given wide latitude to approach individuals and request information when there is some objective credible reason for that interference. Officers may conduct a forcible seizure, defined as significant interruption with an individual's liberty or movement, when an officer has reasonable suspicion that a person has committed, is committing or is about to commit a crime, People v. De Bour, 386 N.Y.S.2d 375 (Ct. of Appeals 1976) (encl. 2a-2k).

§ 87(2)(g)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that

Allegations A and B be closed as **Exonerated**.

Allegation C: Abuse of Authority: PO Brian Moore stopped § 87(2)(b) **and** § 87(2)(b)

Allegation F: Abuse of Authority: PO Brian Moore frisked § 87(2)(b)

Allegation G: Abuse of Authority: PO Brian Moore searched the car in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

PO Moore passed away on May 4, 2015, from injuries incurred while on-duty (encl. 1a-1d). While the undersigned investigator added **Allegations C, F and G** and closed them as **Miscellaneous**, she recommends that the Board change PO Moore to a witness officer in this case.

Allegation D: Abuse of Authority: PO Anton Bartoldus frisked § 87(2)(b)

Allegation E: Abuse of Authority: PO Anton Bartoldus searched § 87(2)(b)

It is undisputed that PO Bartoldus frisked § 87(2)(b) but the search is in dispute. § 87(2)(b) (encl. 8a-8j) said that as soon as he stepped out of the car, he was told to face the car and put his hands on top of it, which he did. PO Bartoldus patted down § 87(2)(b)'s waist, the small of his back, his pockets and all the way down his legs. PO Bartoldus then reached into § 87(2)(b)'s right rear pocket and removed his wallet. § 87(2)(b) looked over his shoulder and saw PO Bartoldus looking at his peace officer shield and identification card (encl. 8h-8i). PO Bartoldus commented that he never heard of § 87(2)(b) and barraged § 87(2)(b) with questions including, "Who are you?" "Where are you coming from?" "Where are you going?" "Who's in the car?" and "Are you armed?" § 87(2)(b) answered, "I'm a peace officer for New York State. § 87(2)(b). My coworker's in the car with her family. We're coming from the church at § 87(2)(b), going to Elmont, to § 87(2)(b)'s house, dropping her and her children home. I'm not armed. I don't carry a weapon." PO Bartoldus said that he knew there were guns and drugs in the car, which § 87(2)(b) denied. § 87(2)(b) directly answered all of PO Bartoldus's questions and never answered an unrelated question with "I'm on the job." § 87(2)(b) never provided false information to the officers. PO Bartoldus commented that § 87(2)(b) seemed very nervous. § 87(2)(b) answered that he was because he had never been stopped like this before and did not understand what was happening.

§ 87(2)(b) (encl. 9a-9g) said that when § 87(2)(b) exited the car, he put his hands on top of the car as per the officers' instructions. An officer who may have been PO Bartoldus § 87(2)(b) could not recall for certain) touched § 87(2)(b) on his waist and did not reach into any pockets. § 87(2)(b) was repeatedly asked about guns and drugs in the car, and § 87(2)(b) answered that there were none. § 87(2)(b) was visibly shaken, but no officer asked him about this.

PO Bartoldus (encl. 10a-10i) said that after § 87(2)(b) exited the car. Nothing on his

seat, for thirty seconds to a minute. There were over four grocery bags containing groceries and he did not look inside them except what he could see in plain view. He did not lean inside the car to do this. He did not look inside of any closed compartments and saw no other officer do this. Initially, he said that no other officer looked inside the car and later said that he could not recall if PO Bartoldus looked inside the car.

Sgt. Collins (encl. 12a-12g) said that when § 87(2)(b) was inside the car, he moved his upper body around. Sgt. Collins could not describe § 87(2)(b)'s movements exactly and they caused him to think it was possible that § 87(2)(b) was reaching for something. After PO Bartoldus frisked § 87(2)(b) he leaned with his flashlight into the area of the car where § 87(2)(b) sat. PO Bartoldus did this of his own accord without any instruction. Sgt. Collins could not see exactly where in the area PO Bartoldus looked, as his eyes were on § 87(2)(b). PO Bartoldus looked inside the car for less than one minute. Sgt. Collins thought PO Bartoldus did this to confirm there was no weapon in the car, as they suspected § 87(2)(b) of this.

An officer's observation of furtive movements within a car does not alone justify a search of the car if a defendant is in no position to obtain a weapon when a search is conducted, People v. Derrell, 889 N.Y.S.2d 95 (December 3, 2009) (encl. 2l-2u).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation H** be closed as **Substantiated**.

Allegation I: Abuse of Authority: PO Anton Bartoldus threatened § 87(2)(b)

§ 87(2)(b) (encl. 8a-8j) said that when PO Bartoldus returned § 87(2)(b)'s identification, PO Bartoldus said, "Well, maybe you have a job, but you're not 'on the job.' There's only one job. You're lucky I don't call your job or § 87(2)(b) and get you in trouble for saying that." § 87(2)(b) (encl. 9a-9g) said that PO Bartoldus said to § 87(2)(b) that only police officers may use the term "on the job," and § 87(2)(b) may not use the term, as he was not really "on the job." After the incident, § 87(2)(b) told § 87(2)(b) that PO Bartoldus threatened to call § 87(2)(b) because he said this, which § 87(2)(b) did not hear.

PO Bartoldus (encl. 10a-10i) said that he told § 87(2)(b) that it was unwise to say that he was "on the job," as this was portraying himself as a police officer. He did not tell § 87(2)(b) that he would get in trouble for saying this or threaten to call his supervisor. Sgt. Collins (encl. 12a-12g) could not recall any officer at the scene speaking to § 87(2)(b) about his comment of being "on the job." No officer told § 87(2)(b) that he would get in trouble for this.

PO Bartoldus's memo book (encl. 10a-10b) notes that § 87(2)(b) stated that he was on the job and could produce no police identification. PO Moore's memo book (encl. 11-11c) notes that § 87(2)(b) said he was "on the job" and was frisked as this indicated criminal possession of a weapon. Sgt. Collins's memo book (encl. 12a-12c) notes that § 87(2)(b) said he was "on the job," an inconsistent answer that indicated criminal possession of a weapon.

PO Bartoldus completed a stop and frisk report for § 87(2)(b) which noted § 87(2)(b)'s statement of "I'm on the job" without police identification as the reasonable suspicion of criminal activity of criminal possession of a weapon (encl. 10c-10d).

The officers' testimonies, memo books and the stop and frisk report generated for the incident focus heavily on § 87(2)(b)'s statement that he was "on the job." § 87(2)(g)
[REDACTED]
[REDACTED]

It is therefore recommended that **Allegation**
I be closed as **Unsubstantiated**.

Pod: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date